SL. No.30

NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH
COURT HALL NO: II

Hearing Through: VC and Physical (Hybrid) Mode

CORAM: SHRI. RAJEEV BHARDWAJ, HON'BLE MEMBER (J)
CORAM: SHRI. SANJAY PURI, - HON'BLE MEMBER (T)

ATTENDANCE-CUM-ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, HYDERABAD BENCH, HELD ON 29.11.2024 AT 10:30 AM

TRANSFER PETITION NO.	
COMPANY PETITION/APPLICATION NO.	**CA (CAA) No.28/230/2024**
NAME OF THE COMPANY	**VK Projects Pvt Ltd (Transferor Co.1) and Sindhura Properties Pvt Ltd (Transferor Co.2) and Astitva Realtors Pvt Ltd (Transferor Co.3)**
NAME OF THE PETITIONER(S)	
NAME OF THE RESPONDENT(S)	
UNDER SECTION	**230**

ORDER

Orders pronounced, recorded vide separate sheets. In the result, CA(CAA) No. 28/230/2024 is allowed.

Sd/-
MEMBER (T)

Sd/-
MEMBER (J)

Vamsi

IN THE NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH, COURT – II

CA (CAA) No.28/230/HDB/2024

[U/s 230 to 232 of the Companies Act, 2013
and other applicable provisions of the Companies Act, 2013]

IN THE MATTER OF SCHEME OF ARRANGEMENT OF

M/s.VK PROJECTS PRIVATE LIMITED
(Transferor Company – 1/Applicant No.1)

AND

M/s.SINDHURA PROPERTIES PRIVATE LIMITED
(Transferor Company – 2/Applicant No.2)

AND

M/s.ASTITVA REALTORS PRIVATE LIMITED
(Transferor Company – 3/Applicant No.3)

AND

M/s.SUNDARI THEME VENTURES PRIVATE LIMITED
(Transferor Company – 4/Applicant No.4)

AND

M/s.IPL INFRA SERVICES PRIVATE LIMITED
(Transferor Company – 5/Applicant No.5)

AND

M/s.ASARA ENERGY VENTURES PRIVATE LIMITED
(Transferor Company – 6/Applicant No.6)

AND

M/s.INDU MINERAL EXPLORATION (INDIA) PRIVATE LIMITED
(Transferor Company – 7/Applicant No.7)

AND

M/s.KAVITI POWER PRIVATE LIMITED
(Transferor Company – 8/Applicant No.8)

AND

M/s.KAKATIYA LONGWALL PROJECT PRIVATE LIMITED
(Transferor Company – 9/Applicant No.9)

AND

M/s.STELLAR ENERGY TECHNOLOGIES PRIVATE LIMITED
(Transferor Company – 10/Applicant No.10)

AND

M/s.INDU PROJECTS LIMITED
(Transferee Company – /Applicant No.11)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

M/s.VK Projects Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferor Company No.1/Applicant No.1

M/s.Sindhura Properties Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

…. Transferor Company No.2/Applicant No.2

M/s.Astitva Realtors Private Limited

Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

…. Transferor Company No.3/Applicant No.3

M/s.Sundari Theme Ventures Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferor Company No.4/Applicant No.4

M/s.IPL Infra Services Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferor Company No.5/Applicant No.5

M/s.Asara Energy Ventures Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferor Company No.6/Applicant No.6

M/s.Indu Mineral Exploration (India) Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferor Company No.7/Applicant No.7

M/s.Kaviti Power Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,

KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferor Company No.8/Applicant No.8

M/s.Kakatiya Longwall Project Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferor Company No.9/Applicant No.9

M/s.Stellar Energy Technologies Private Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferor Company No.10/Applicant No.10

M/s.Indu Projects Limited
Registered Office at No.1009,
Indu Fortune Fields, 13th Phase,
KPHB Colony, Kukatpally,
Hyderabad, Telangana,
PIN – 500072, India.

….Transferee Company/Applicant No.11

Date of Order: 29.11.2024

CORAM:
Sri Rajeev Bhardwaj, Hon'ble Member (Judicial)
Sri Sanjay Puri, Hon'ble Member (Technical)

Counsel/Parties present:
For the Applicant : Mr. Uday Chandra Y and Mr. Shaik Gouse, Learned PCS.

[P E R : B E N C H]

O R D E R

1. This is a Joint Application filed under Section 230 and 232 of the Companies Act, 2013 seeking approval for dispensation of convening of the meeting of the shareholders and creditors of the Joint Applicants for considering the scheme of Amalgamation of M/s.VK Projects Private Limited and M/s.Sindhura Properties Private Limited and M/s.Astitva Relators Private Limited and M/s.Sundari Theme Ventures Private Limited and M/s.IPL Infra Services Private Limited and M/s.Asara Energy Ventures Private Limited and M/s.Indu Mineral Exploration (India) Private Limited and M/s.Kaviti Power Private Limited and M/s.Kakatiya Longwall Project Private Limited and M/s.Stellar Energy Technologies Private Limited and M/s.Indu Projects Limited and their Respective Shareholders And Creditors

   The Transferor Companies 1, 2, 3, 4, 5, 6, 7, 8, 9 and 10 are hereinafter collectively referred to as "Transferor Companies" and the Transferor Companies and Transferee Company together are referred to as "Joint Applicants/Applicant Companies" are inter-alia seeking the following reliefs :

   (a) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-1 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement;

   (b) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-1 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement:

(c) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-2 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(d) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-2 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(e) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-3 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement

(f) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-3 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(g) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-4 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(h) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-4 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(i) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-5 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(j) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-5 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(k) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-6 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement

(l) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-6 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement,

(m) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-7 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(n) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-7 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(o) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-8 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(p) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-8 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(q) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-9 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement.

(r) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-9 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(s) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferor Company-10 since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(t) To dispense with the requirement of holding the meeting of the Unsecured Creditors of the Transferor Company-10 since all the Unsecured Creditors have given their consent by way of affidavit to the proposed Scheme of Arrangement;

(u) To dispense with the requirement of holding the meeting of the equity shareholders of the Transferee Company since all the shareholders have given their consent by way of affidavit to the proposed Scheme of Arrangement:

(v) To conduct the meeting of the Unsecured Creditors of Transferee Company be held on such date and time as this Hon'ble Tribunal may deem fit and that a Chairman be appointed for the meetings, and pass necessary directions with regards to issue of notice, convening, holding and conducting of the meetings.

2. The averments made in the application are briefly described as under:

I. Details of Joint Applicants:

A. Transferor Company No.1:

a) The Applicant No.1, **M/s.VK.Projects Private Limited (Transferor Company No.1)** was incorporated on 26th June, 2001 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U45200TG2000PTC034756 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Civil Engineering and Infrastructure Contracts (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 1 of the Application.**

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.1 as on 31st March, 2024 are as under:

Particulars	Amount in Rupees
Authorized Capital	

1,00,000 Equity Shares of Rs.10/- each	10,00,000
Total	**10,00,000**
Issued, Subscribed and Paid-up Capital	
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company -1 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company-1 till the date of filing this application there has been no change in issued, subscribed and paid up capital of the Transferor Company 1.

B. Transferor Company No.2:

a) The Applicant No.2, **M/s.Sindhura Properties Private Limited (Transferor Company No.2)** was incorporated on 26th September, 2002 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U45200TG2002PTC039678 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Construction and other allied Activities (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 2 of the Application.**

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.2 as on 31st March, 2024 are as under:

Particulars	Amount in Rupees
Authorized Capital	
5,00,000 Equity Shares of Rs.10/- each	50,00,000

Total	**50,00,000**
Issued, Subscribed and Paid-up Capital	
2,19,000 Equity Shares of Rs.10/- each	21,90,000
Total	**21,90,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company -2 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company-2 till the date of filing this application there has been no change in issued, subscribed and paid up capital of the Transferor Company 2.

C. Transferor Company No.3:

a) The Applicant No.3, **M/s.Astitva Realtors Projects Private Limited (Transferor Company No.3)** was incorporated on 4th September, 2001 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U45201TG2001PTC037743 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Construction and Maintenance of Theme Parks (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 3 of the Application**.

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.3 as on 31st March, 2024 are as under:

Particulars	Amount in Rupees
Authorized Capital	
13,50,000 Equity Shares of Rs.10/- each	1,35,00,000
Total	**1,35,00,000**

Issued, Subscribed and Paid-up Capital	
13,24,000 Equity Shares of Rs.10/- each	1,32,40,000
Total	**1,32,40,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company -3 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company-3 till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferor Company 3.

D. Transferor Company No.4:

a) The Applicant No.4, **M/s.Sundari Theme Ventures Private Limited (Transferor Company No.4)** was incorporated on 20th September, 2007 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U45400TG2007PTC055629 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Construction and Maintenance of Theme Parks (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 4 of the Application**.

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.4 as on 31st March, 2024 are as under:

Particulars	**Amount in Rupees**
Authorized Capital	
35,00,000 Equity Shares of Rs.10/- each	3,50,00,000
Total	**3,50,00,000**

Issued, Subscribed and Paid-up Capital	
35,00,000 Equity Shares of Rs.10/- each	3,50,00,000
Total	**3,50,00,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company - 4 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company-4 till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferor Company - 4.

E. Transferor Company No.5:

a) The Applicant No.5, **M/s.IPL Infra Services Private Limited (Transferor Company No.5)** was incorporated on 28th November, 2005 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U45200TG2005PTC048203 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Construction and Infra Services (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 5 of the Application.**

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.5 as on 31st March, 2024 are as under:

Particulars	**Amount in Rupees**
Authorized Capital	
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

Issued, Subscribed and Paid-up Capital	
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company -5 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company-5 till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferor Company - 5.

F) Transferor Company No.6:

a) The Applicant No.6, **M/s.Asara Energy Ventures Private Limited (Transferor Company No.6)** was incorporated on 20th February, 2008 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U40108TG2008PTC057690 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Infra works relating to setting up of Energy Projects (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 6 of the Application.**

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.6 as on 31st March, 2024 are as under:

Particulars	**Amount in Rupees**
Authorized Capital	
10,00,000 Equity Shares of Rs.10/- each	1,00,00,000
Total	**1,00,00,000**

Issued, Subscribed and Paid-up Capital	
20,000 Equity Shares of Rs.10/- each	2,00,000
Total	**2,00,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company - 6 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company- 6 till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferor Company - 6.

G) Transferor Company No.7:

a) The Applicant No.7, **M/s.Indu Mineral Exploration (India) Private Limited (Transferor Company No.7)** was incorporated on 31st March, 2008 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U26900TG2008PTC058444 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Infra works relating to minerals exploration and other allied activities (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 7 of the Application**.

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.7 as on 31st March, 2024 are as under:

Particulars	**Amount in Rupees**
Authorized Capital	
50,000 Equity Shares of Rs.10/- each	5,00,000
Total	**5,00,000**
Issued, Subscribed and Paid-up Capital	

10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company - 7 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company - 7 till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferor Company - 7.

H) Transferor Company No.8:

a) The Applicant No.8, **M/s.Kaviti Power Private Limited (Transferor Company No.8)** was incorporated on 31st August, 2009 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U40102TG2009PTC064890 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Power Generation (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 8 of the Application**.

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.8 as on 31st March, 2024 are as under:

Particulars	Amount in Rupees
Authorized Capital	
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**
Issued, Subscribed and Paid-up Capital	
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company - 8 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company- 8 till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferor Company - 8.

I) Transferor Company No.9:

a) The Applicant No.9, **M/s.Kakatiya Longwall Project Private Limited (Transferor Company No.9)** was incorporated on 2nd January, 2012 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U10101TG2012PTC078343 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Mining and other Infrastructure activities (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 9 of the Application.**

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.9 as on 31st March, 2024 are as under:

Particulars	Amount in Rupees
Authorized Capital	
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**
Issued, Subscribed and Paid-up Capital	
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company - 9 is held by the Transferor Company – 7/Applicant No -7.

From the date of approval of the Scheme by the Board of Directors of Transferor Company- 9 till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferor Company - 9.

J) Transferor Company No.10:

a) The Applicant No.10, **M/s.Stellar Energy Technologies Private Limited (Transferor Company No.10)** was incorporated on 14th May, 2008 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U40106TG2008PTC059160 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of manufacturing of Photovoltaic Cells and other related equipment for setting up of power projects (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 10 of the Application**.

b) The authorized, issued, subscribed and paid-up share capital of the Transferor Company No.10 as on 31st March, 2024 are as under:

Particulars	Amount in Rupees
Authorized Capital	
50,000 Equity Shares of Rs.10/- each	5,00,000
Total	**5,00,000**
Issued, Subscribed and Paid-up Capital	
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

The entire issued, subscribed and paid up equity share capital of the Transferor Company – 10 is held by the Transferee Company.

From the date of approval of the Scheme by the Board of Directors of Transferor Company - 10 till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferor Company -10.

K. Transferee Company:

a) The Applicant No.11, **M/s.Indu Projects Limited (Transferee Company)** was incorporated on 7th December, 2001 under the provisions of the Companies Act, 1956 in the erstwhile State of Andhra Pradesh. The CIN of the Transferor Company is U45200TG2001PLC038175 and registered under the Registrar of Companies, Hyderabad. It is engaged in the business of Construction and Infrastructure activities (hereinafter referred to as the "Business of the Transferor Company"). A copy of the Certificate of Incorporation, Memorandum and Articles of Association of the Transferor Company are at **Annexure 11 of the Application.**

b) The authorized, issued, subscribed and paid-up share capital of the Transferee Company as on 31st March, 2024 are as under:

Particulars	Amount in Rupees
Authorized Capital	
17,70,00,000 Equity Shares of Rs.10/- each	1,77,00,00,000
2,30,00,000 Preference Shares of Rs.10/- each	23,00,00,000
Total	**2,00,00,00,000**
Issued, Subscribed and Paid-up Capital	
60,00,000 Equity Shares of Rs.10/- each fully paid-up	6,00,00,000
Total	**6,00,00,000**

The names, no of shares held (Rs.10/- each) and percentage (%) of total capital of the entire issued, subscribed and paid up equity share capital of the Transferee Company is detailed on **page No.80 of the Application**. From the date of approval of the Scheme by the Board of Directors of Transferee Company till the date of filing this application, there has been no change in issued, subscribed and paid up capital of the Transferee Company.

3. **Jurisdiction of the Bench**:

The registered offices of the Applicant Companies are situated in the state of Telangana. Therefore, the Applicant Companies declare that the subject-matter of the Application is within the jurisdiction of this National Company Law Tribunal, Hyderabad Bench.

4. **Limitation**:

The Joint Applicants further declare that the petition is within the limitation laid down in Section 230 to 232 of Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

5. The 'Object Clause of Memorandum and Association' of Joint Applicants (Transferor Companies and Transferee Company) which enables them to amalgamate with other Company is detailed in Page No.65 of the Application.

6. The summarized position of the assets and liabilities of the Transferor Companies and Transferee Company as on 31st March, 2024 is detailed in Page Nos.65 to 73 of the Application. The copies of the Audited

Financial Statements as on 31st March, 2023 of respective Applicant Companies are at **Annexure 12 of the Application** and Audited Financial Statements as on 31st March, 2024 of respective Applicant Companies are at **Annexure 13 of the Application**.

7. The Board of Directors of Joint Applicants (Transferee Companies and Transferee Company) in their respective meetings held on 2nd September, 2024 (Page No.81 of the Application) approved the Scheme of Amalgamation unanimously. The copies of the Board resolution approving the Scheme of Amalgamation of respective Companies are at **Annexure 14 of the Application**.

8. **The Scheme *inter alia* is to achieve**: It is proposed to merge the Transferor Companies with the Transferee Company. The Transferor Companies are wholly owned subsidiaries of the Transferee Company (except Transferor Company No.9 which is a step down subsidiary of the Transferee Company). The merger will result in consolidation of the business of the companies resulting in expansion of the business and maximization of value for shareholders and all other stakeholders as detailed below:

   a) Facilitate consolidation of the undertakings in order to enable effective management and unified control of operations.
   b) Create economies in administrative and managerial costs by consolidating operations.
   c) Reduce duplication of administrative responsibilities and multiplicity of records prospectively a reduction in costs for accounting, compliance, auditing, board meetings, secretarial procedures and administration, organization efficiencies, reduction in overheads, personnel costs, compliance costs and other administrative costs.

d) There is no likelihood that the interests of any shareholder or creditor of any of the Transferor Companies or the Transferee Company would be prejudiced as a result of the Scheme since Transferor Companies are wholly owned subsidiaries of the Transferee Company (except Transferor Company No.9 which is a step-down subsidiary of the Transferee Company).
e) The Scheme is commercially and economically viable and feasible and is in fact fair and reasonable.

It is envisaged that the said merger would be in the larger interest of the shareholders, creditors and employees of the Companies and the implementation of the Scheme would help to achiever effective growth and maximization of shareholders' wealth while protecting the interests of all stakeholders of the Companies. The Scheme of Amalgamation is at **Annexure 15 of the Application**.

9. **Share Exchange Ratio**: It is submitted that the entire Issued, Subscribed and Paid-up Equity Share Capital of each of the Transferor Companies is held by the Transferee Company. Upon the Scheme becoming effective, notwithstanding anything contrary in this Scheme, the entire Share Capital of Transferor Companies will stand automatically cancelled and there will be no issue and allotment of fresh shares to the Transferee Company, hence, share exchange ratio is not applicable. Accordingly, valuation report is not required.

10. **Compliance of Accounting Standards**: The accounting treatment proposed at Clause 13 of Scheme of Amalgamation between the Transferor Companies and Transferee Company and their respective Shareholders and Creditors is in conformity with the accounting standards as prescribed under the provisions of Section 133 of the Companies Act, 2013. Certificates issued by the respective Statutory

Auditors of the Transferor Companies and the Transferee Company conforming the Accounting Treatment proposed in the Scheme are at **Annexure 16 of the Application.**

11. **List of Shareholders of the Applicant Companies**: The list of Shareholders of the Transferor Companies and Transferee Company duly certified by the Statutory Auditors of respective Companies are enclosed at **Annexure 17 of the Application.**

12. **List of Secured Creditors/Unsecured Creditors of the Applicant Companies:** It is submitted that there are no Secured Creditors in the Transferor and Transferee Companies. The list of Unsecured Creditors of Transferor and Transferee Companies duly certified by the Statutory Auditors of respective companies are enclosed at **Annexure 18 of the Application.**

13. **Consent of Equity Shareholders of the Applicant Companies:** It is submitted that Copy of Scheme of Amalgamation was circulated to Equity Shareholders after approval of the Board of Directors and all the Equity Shareholders of the Transferor Companies and Transferee Company have given their consent in writing to such Scheme of Amalgamation. The copy of Consent Affidavits received from the Equity Shareholders of the Transferor are enclosed at **Annexures 19, 20, 21, 22, 23, 24, 25, 26, 27 and 28 of the Application.** Further, copies of Consent Affidavits of Equity Shareholders of Transferee Company is at **Annexure 29 of the Application.**

14. **Consent of Unsecured Creditors:** The Unsecured Creditors of the Transferor Companies gave consent to the Scheme in the form of

Affidavits. Copies of Consent Affidavits received from the Unsecured Creditors of the Transferor Companies are enclosed at **Annexures 30, 31, 32, 33, 34, 35, 36, 37, 38 and 39 of the Application**

15. It is submitted that '**No Investigation proceedings are pending against the Joint Applicants'** under Sections 235 to 251 or any other provisions of the Companies Act, 1956 and/or Sections 206 to 229 or any other provisions of the Companies Act, 2013.

16. In view of the above factual matrix and consent of all the Shareholders of the Applicant Companies and the requisite consent of Unsecured Creditors of Transferor Companies for the proposed Scheme of Amalgamation, the present Joint Application is filed before this Tribunal seeking the dispensation of meetings of the Shareholders of all the Applicant Companies and dispensation of meetings of unsecured creditors of the Transferor Companies and to conduct the meeting of the Unsecured Creditors of Transferee Company under Section 230 read with Section 232 of the Companies Act, 2013.

17. We have heard the Learned Counsel and have seen the consent Affidavits filed by the equity shareholders of the Applicant Companies. We have also seen the certificates given by the Chartered Accountant and Company Secretaries certifying the list of Equity Shareholders, Secured and unsecured creditors of the Applicant Companies and perused the documents.

18. All the shareholders of the Applicant Companies have given consent affidavits, agreeing to the proposed Scheme of Amalgamation. Hence,

we order convening the meeting of the unsecured creditors of Transferee Company **(as detailed in para 16 above)**.

19. **<u>Meeting Of The Unsecured Creditors Of Transferee Company :</u>**

i. We appoint Mr. K.Sai Prashanth Reddy as Chairperson with email: prashanth.r1297@gmail.com, Mobile No:7032398290 and CS Sandhya Jadla, PCS with e-mail: sandhyatadla@gmail.com, Mobile No.9866559557 as Scrutinizer for convening meeting of the unsecured creditors of Transferee Company. The Fee fixed for Chairperson is Rs.1,50,000/- and Rs.1,00,000/- for Scrutinizer for the above meeting.

ii. Meetings of the Unsecured Creditors of Transferee Company will be held on 28.12.2024 at Flat no.202, Jyothi Srinivasam, Plot No. 1109/A, Road No.55, Jubilee Hills, Hyderabad at 11.00 A.M.

iii. The Unsecured Creditors, be permitted to exercise their vote at the meeting either in person or through proxies.

20. The notice of Meetings of the Unsecured Creditors of Transferee Company shall be published in “Business Standard” (English Daily) and in “Nava Telangana” (Telugu Daily) newspapers.

21. The Applicant Companies or its authorized Signatories are directed to issue notices to unsecured creditors by ordinary post; or Air Mail or email or hand delivery to their last known address 30 clear days before the said meetings as per Form No. CAA2 (Rule 6) of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 ensuring convening the said meetings of the Applicant Companies. Further directed to intimate day, date and time, a copy of Explanatory

Statement, pursuant to be sent under Section 230 of the Companies Act, 2013 and Proxy as per Form No. MGT-11 (Rule 19) of the Companies (Management and Administration) Rules, 2014.

22. The Transferee Company to serve notices upon the Regional Director, South-East Region, Ministry of Corporate Affairs, Hyderabad pursuant to Section 230 (5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 if no response is received by the Tribunal from the Regional Director within 30 days of the date of receipt of the notice, it will be presumed that Regional Director and/or Central Government has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

23. The Transferee Company to serve the notice upon the Registrar of Companies Hyderabad pursuant to Section 230 (5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises Arrangement and Amalgamations) Rules, 2016 and if no response is received by the Tribunal from the Registrar of Companies, Hyderabad within 30 days of the date of receipt of the notice, it will be presumed that Registrar of Companies, Hyderabad has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise Arrangements and Amalgamations) Rules, 2016.

24. The Transferee Company to serve notice upon the Income Tax Authority, within whose jurisdiction the Applicant Company's Assessment is made, pursuant to Section 230 (5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and

Amalgamations) Rules, 2016. If no response is received by the Tribunal from the Income Tax Authority within 30 days of the date of receipt of the notice, it will be presumed that Income Tax Authority has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016.

25. The Transferee Company to serve notice upon the Official Liquidator pursuant to Section 230 (5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises Arrangements and Amalgamations) Rules, 2016. If no response is received by the Tribunal from the Official Liquidator within 30 days of the date of receipt of the notice it will be presumed that Official Liquidator has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016.

26. The Chairpersons shall have all powers under the Companies (Compromises, Arrangement and Amalgamation) Rules, 2016 in relation to the conduct of the meetings (s) including, deciding the procedural questions that may arise before or at any adjournment thereof or any other matter including an amendment to the Scheme or resolution, if any, proposed at the meeting by any person (s).

27. The voting shall be in person or by proxy or authorized representative, provided that the proxy, in the Form No. MGT-11, is duly authorized by the person entitled to attend and vote at the meeting. The form is to be filed with the Transferee Company at its Registered Office, not later than, forty eight hours before the aforesaid meeting in accordance with

Rule 10 of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016.

28. The Chairpersons to file affidavit within 7 days from the date of the said meetings to this Tribunal that the direction regarding convening and issuance of notice (s) to all the necessary parties have been duly complied with in conformity with the relevant provisions of the Companies Act, 2013 r/w Companies (Compromise, Arrangement and Amalgamation) Rules, 2016. The Chairpersons shall report the conclusion of the aforesaid meetings as per Rule 14 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

Sd/-
(Sanjay Puri)
Member (Technical)

Sd/-
(Rajeev Bhardwaj)
Member (Judicial)

Vinod